Static Terms of the Buyer Network Participant

Knobly Consulting LLP, operating the buyer application “Bru”

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1 Purpose and scope

These are the standing commercial and operational terms under which Knobly Consulting LLP (“the Buyer NP”, “we”) participates in the Open Network for Digital Commerce (ONDC) as a buyer-side network participant, and the terms that apply between the Buyer NP and the seller-side network participants (“Seller NPs”) with whom it transacts. They supplement, and are subordinate to, the ONDC Network Participant Agreement and the ONDC Network Policies in force from time to time. Where a transaction-level term is exchanged through the protocol (for example `bpp_terms` and `bap_terms` tags on an order), the protocol-level term for that order prevails over the general statement here.

The buyer application is a voice assistant called Bru. A person speaks or types a request, Bru finds items on the network, reads a quote back, and places the order only after the person has heard the quote and the delivery address and has said yes. Bru does not place any order without that explicit confirmation, and it keeps a record of the confirmation turn with every order.

2 Definitions

Buyer the natural person using Bru who places an order on the network.
Order a confirmed transaction identified by the Seller NP’s order id and the network transaction id.
Pre-shipment the period after `on_confirm` and before the fulfillment state `Order-picked-up`.
Post-shipment from `Order-picked-up` to `Order-delivered` inclusive.
Finder fee the buyer app’s fee stated in each `search`, `init` and `confirm` as `buyer_app_finder_fee_type` and `buyer_app_finder_fee_amount`.
Working day Monday to Friday, excluding public holidays in Bengaluru, Karnataka.

3 Commercial terms

3.1 Finder fee

The finder fee is stated on every order as a percentage of the item value. The default is three percent (3%), unless a different value is carried in the transaction. Seller NPs settle the finder fee as part of the settlement described in section 7.

3.2 Taxes and invoicing

Each party is responsible for its own tax obligations. The Buyer NP’s GST registration number is carried in `bap_terms` under `tax_number` on every confirmed order. Invoices for the finder fee are raised monthly, in arrears, against the settled orders of the month.

4 Cancellation terms

Cancellation follows the ONDC Retail cancellation policy and reason codes. The Buyer NP sends a `cancel` only on the buyer’s instruction and only with a reason from the buyer-side list; the Seller NP’s `on_cancel` governs the final state and any charges.

4.1 Pre-shipment

Initiated by	Charges to the buyer	Notes
Buyer, before `on_confirm` is received	None	Order never came into existence.
Buyer, after `on_confirm`, before `Order-picked-up`	None, unless the Seller NP has marked the item non-cancellable in	Reason codes 051, 052, 053 as applicable.

	the catalogue and said so in the quote	
Seller NP (item unavailable, store closed, pincode not serviceable)	None; full refund of any prepaid amount	Reason codes 002, 004, 018, 019.

4.2 Post-shipment

Initiated by	Charges to the buyer	Notes
Buyer, after `Order-picked-up`	As stated by the Seller NP in the quote's cancellation terms; otherwise the delivery charge	The Seller NP's `on_cancel` carries the final quote.
Buyer not reachable, refused delivery, address not found	Return-to-origin cost as stated in the quote's cancellation terms	Reason codes 011, 013, 014; cost attributed to the buyer side.
Logistics failure (accident, delay, lost in transit)	None; full refund	Reason codes 016, 017, 020; cost attributed to the seller side.

5 Returns and replacements

Returns are requested through `update` with a `return_request` on a `Return` fulfillment, within the return window the Seller NP states in the catalogue for that item. Food and beverage items are not returnable unless the Seller NP's catalogue says otherwise; a wrong, damaged or incomplete delivery is raised as an issue under section 6 instead. For items that are returnable, the buyer's refund is due when the Seller NP's `on_update` reports the return as accepted or liquidated, and is settled in the next settlement cycle.

6 Issues and grievances (IGM)

The Buyer NP implements the Issue and Grievance Management protocol. An issue raised by a buyer is sent as `issue`; the Buyer NP expects a first response within the `expected_response_time` stated in the issue (two hours by default) and a resolution within `expected_resolution_time` (one working day by default). Escalation beyond the Seller NP follows the ONDC Online Dispute Resolution policy. The Buyer NP's grievance officer is named in the ONDC portal profile; a buyer can reach the grievance desk through Bru itself ("talk to a person about my order") or by email to the address published on the buyer application's door page.

7 Settlement

Settlement follows the Reconciliation and Settlement Framework. Unless the transaction carries different values:

- `settlement_basis`: delivery (the order is settled once delivered).
- `settlement_window`: P1D (the day after delivery).
- `withholding_amount`: 0.00.
- Settlement is between the collecting party and the counterparty named in `settlement_details`; where the Buyer NP collects (`collected_by: BAP`), it settles the order value less the finder fee to the Seller NP; where the Seller NP collects (`collected_by: BPP`), it settles the finder fee to the Buyer NP.
- Disputed amounts are reconciled through `recon`/`on_recon` and settled on resolution.

8 Liability

Each party's liability to the other for a transaction is limited to the value of that transaction, with a cap of INR 10,000 per transaction unless the order's `bpp_terms` set a different `max_liability_cap`. Neither party is liable for indirect or consequential loss. Delay interest on amounts settled late is as stated in `bpp_terms` (`delay_interest`), or 7.5% a year where none is stated.

9 Dispute resolution and jurisdiction

Disputes between network participants are first referred to the ONDC Online Dispute Resolution process. Mandatory arbitration applies only where `bpp_terms` set `mandatory_arbitration` to true for the order. Courts in Bengaluru, Karnataka have jurisdiction, unless the order's `court_jurisdiction` says otherwise.

10 Data

The Buyer NP shares with a Seller NP only the data the protocol requires for the order: delivery address, contact for the delivery, and the items. Personal data is masked in the transaction logs shared with the network's observability service, as the network's guidance requires; city, pincode and location coordinates are not masked. The Buyer NP keeps a record of each order, the quote read back to the buyer, and the buyer's confirmation, for the period the network policies require.

11 Changes

These terms are versioned. A new version is published to the network's static-terms repository with a new version number and takes effect for orders confirmed after publication; orders already confirmed keep the version in force at confirmation.

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